

IN THE HONORABLE SUPREME COURT OF THE REPUBLIC OF LIBERIA
SITTING IN ITS OCTOBER TERM, A.D. 2023

BEFORE HER HONOR: SIE-A-NYENE G. YUOHCHIEF JUSTICE
BEFORE HER HONOR: JAMESETTA H. WOLOKOLIEASSOCIATE JUSTICE
BEFORE HIS HONOR: JOSEPH N. NAGBE.....ASSOCIATE JUSTICE
BEFORE HIS HONOR: YUSSIF D. KABAASSOCIATE JUSTICE
BEFORE HIS HONOR: YAMIE QUIQUI GBEISAY, SR.....ASSOCIATE JUSTICE

The Management of Firestone Liberia Inc., represented by its)
President and Managing Director, Mr. Gruntons Sirleaf and all)
Corporate Officers of Harbel, Margibi County, Republic of)
Liberia.....Informant)

Versus)

BILL OF INFORMATION

Otoso Cole et al of Harbel City, Margibi County, Republic of)
Liberia.....Respondent)

GROWING OUT OF THE CASE:

The Management of Firestone Liberia, Inc, represented by its)
President and Managing Director, Mr. Gruntons Sirleaf and all)
Corporate Officers of Harbel, Margibi County, Republic of)
Liberia.....Appellant)

APPEAL

Versus)

Otoso Cole at al of Harbel City, Margibi County, Republic of)
Liberia.....Appellees)

GROWING OUT OF THE CASE:

The Management of Firestone Liberia, Inc. represented by its)
President and Managing Director, Mr. Gruntons Sirleaf and all)
Corporate Officers of Harbel, Margibi County, Republic of)
Liberia.....Appellant)

PETITION FOR
JUDICIAL REVIEW

Versus)

Otoso Cole at al of Harbel City, Margibi County, Republic of)
Liberia.....Appellees)

Heard: October 25, 2023

Decided: December 19, 2023

MADAM JUSTICE WOLOKOLIE DELIVERED THE OPINION OF THE COURT

To appreciate the contentions of the parties in this bill of information, it is important to provide a synopsis of the case out of which the bill of information emanates.

The respondents Oso Cole et al., are current and former officers of the Plant Protection Department (PPD) of the Informant Management of Firestone Liberia Inc., (Firestone). The records certified to this Court show that on August 11, 2009, the respondents filed a complaint against the informant, Management of Firestone Liberia, Inc., before the Ministry of Labor, alleging unfair labor practices meted against them by the informant management. The respondents alleged in their complaint that the informant management had denied them the opportunity of joining the Firestone Agriculture Workers Union of Liberia (FAWUL), an employee union that bargains for and on behalf of its members to the informant management; that the informant management had required them to report to work at 7:30 a.m., thirty minutes earlier than the start of the normal work time (8:00 a.m.), and that they stayed at work during lunch time and leave work at 5:30 p.m. which is one hour thirty minutes beyond the normal time for leaving work (4:00p.m.); that the informant management deducted US\$300.00 from each of the respondents who are still in the employ of the informant as collateral bond for uniform without the respondents consent and without any agreement to that effect; that the informant management failed to pay the transportation and last rice ration to the respondents who are no longer employed with the informant.

The complaint was forwarded to the Division of Labor Standard of the Ministry of Labor with instruction that the Division mediates between the respondents and the informant management in finding an amicable solution to the controversy. After several mediatory meetings with the parties, the Division of Labor Standards reported that the parties had agreed that all personnel of the Plant Protection Department (PPD) with the exception of those in confidential positions be allowed to join the Firestone Agriculture Workers Union of Liberia (FAWUL); that the deduction of the US\$300.00 as collateral bond for uniform be continued until same is dealt with and/or incorporated in the new Collective Bargaining Agreement (CBA); that the respondents who were redundant by the informant management be provided transportation allowances in keeping with the CBA and be given rice ration after a thorough search of the records. The Division of Labor Standards also reported that the issue of lunch benefit being a right-based issue, and because the parties failed to reach an agreement on that issue, same should be forwarded to the Labor Commissioner of Margibi County for an investigative hearing and determination thereof.

In keeping with the report of the Division of Labor Standards, the Labor Commissioner of Margibi County, Albert B. Jallah, conducted an investigation into the issue of lunch break benefits. At the conclusion of the investigation, Commissioner Albert B. Jallah adjudged the informant management liable of unfair labor practices and ordered the informant to pay the respondents who are no longer in the employ of the informant the total amount of US\$29,332.14 (Twenty-nine Thousand Three Hundred Thirty-two Dollars and Fourteen Cents

United States Dollars), and to pay the respondents who are still within the informant's employ the amount of US\$219,920.94 (Two Hundred Nineteen Thousand Nine Hundred Twenty Dollars and Ninety-four Cents United States Dollars). Commissioner Albert B. Jallah further ruled that the informant management is under obligation to calculate and pay the entitlements of employees who are beneficiaries or associated with the case but are said to be transferred in keeping with the Labor Law of Liberia.

Both the informant management and the respondents excepted to the ruling of Labor Commissioner Albert B. Jallah and filed petitions for judicial review before the Thirteenth Judicial Circuit Court, Margibi County. The court consolidated the two petitions for judicial review and after conducting hearings thereon, ruled on April 11, 2012, affirming the Labor Commissioner's ruling of liable against the informant management for unfair labor practices. The court, however, held that the awards made by the Labor Commissioner were inconsistent with the evidence presented in the case. The court instead awarded the sum of US\$1,162,898.36 (One Million One Hundred Sixty-two Thousand, Eight Hundred Ninety-eight Dollars Thirty-six Cents United States Dollars) to the respondents who are still within the employ of the informant management, representing overtime payment and the US\$300.00 deduction for collateral bond; the court also awarded the sum of US\$104,335.34 (One Hundred Four Thousand Three Hundred Thirty-five Dollars Thirty-four Cents United States Dollars) representing overtime payment to the respondents who are no longer in the employ of the informant management.

The informant management excepted to the court's ruling and announced an appeal to the Supreme Court.

The records show that while the informant's appeal was pending before the Supreme Court, the parties executed a settlement agreement on September 24, 2012, by which they agreed to settle their dispute and terminate the case. We quote herein below the referenced settlement agreement:

"Settlement Agreement"

THIS SETTLEMENT AGREEMENT, executed this 24th day of September, 2012, by FIRESTONE LIBERIA, INC., hereinafter known and referred to as "FIRESTONE", represented by its Acting President and Managing Director, Patrick Rodrigo; the Aggrieved employees of the Plant Protection Department (PPD) of Firestone Liberia Inc., hereinafter known and referred to as "AGGRIEVED PPD PERSONNEL", represented by Gabriel K. Parkinson (No. 460127), J. Otoo Cole (No. 463022), and James K. Garlon (No. 462874), all employees of the said Plant Protection Department who testified at trial as the AGGRIEVED PPD PERSONNEL'S first, second and third witnesses, respectively; and the Firestone Agricultural Workers Union, hereinafter known

and referred to as "FAWUL" acting as representative of its members in general, hereby;

WITNESSETH:

WHEREAS, by a letter dated August 11, 2009, a number of employees (guards) of FIRESTONE'S Plant Protection Department (PPD), led by Ootoso Cole, filed a complaint with the Ministry of Labor alleging unfair labor practices said to have been meted out against them by FIRESTONE and enumerated therein that FIRESTONE had (i) denied them the right to become members of the Worker's Union (FAWUL), (ii) denied them lunch break and refused to pay for the services rendered during said lunch period; (iii) withheld from their salaries the amount of US\$300.00 (United States Dollars Three Hundred) each as security deposit/collateral bond (hereinafter "Bond") for the uniform and other working gear issued them and (iv) denied transportation to employees of the said PPD whose services have been terminated; and

WHEREAS, prior to the conduct of a full-scale administrative investigation into the AGGRIEVED PPD PERSONNEL'S complaint, the Ministry of Labor constituted a Mediation Committee with mandate to mediate between FIRESTONE and the AGGRIEVED PPD PERSONNEL via-a-vis the latter's claims as set forth in the August 11, 2009 letter of complaint; and

WHEREAS, by a Memorandum dated September 2, 2009, addressed to Hon. J. Cole Bangalu, Assistant Minister for Trade Union Affairs, and Hon. Rosetta N. Jackollie, Assistant Minister for Labor Standards, the Mediation Committee submitted its Report (findings and recommendations) in respect of the claims of the AGGRIEVED PPD PERSONNEL, which report essentially and conclusively resolved the issues of (i) the AGGRIEVED PPD PERSONNEL'S becoming union members and (ii) transportation of terminated employees; and

WHEREAS, since there was no meeting of the minds between FIRESTONE and the AGGRIEVED PPD PERSONNEL on the issues of (i) compensation for services rendered during lunch (rest) period, (ii) compensation for overtime claimed and (iii) deductions made from the salaries of the AGGRIEVED PPD PERSONNEL for bond, same were ruled to full-scaled investigation by the Labor Commissioner of Margibi County; and

WHEREAS, at the conclusion of the investigation which spanned a period of approximately fourteen (14) months (January, 2010 thru March, 2011) the Labor Commissioner entered Final Ruling adjudging FIRESTONE liable to pay the AGGRIEVED PPD PERSONNEL the aggregate amount of US\$249,253.08 (United States Dollars Two Hundred Forty-nine Thousand Two Hundred Forty-three 8/100), broken down as follows:

Payment to Active PPD Personnel	US\$219,920.94
Payment to Non-active PPD Personnel	<u>US\$ 29,332.14</u>
Total	<u>US\$249,253.08; and</u>

WHEREAS, both parties (i.e. FIRESTONE AND AGGRIEVED PPD PERSONNEL) being dissatisfied with the Final Ruling of the Labor

Commissioner excepted to same and filed separate Petitions for Judicial Review before the Circuit Court of the 13th Judicial Circuit for Margibi County, sitting in its May Term, A.D. 2011, for review of the Ruling considered by each to be prejudicial; and

WHEREAS, the petitions for judicial review were consolidated and heard and at the conclusion of the hearing, the said 13th Judicial Circuit Court, under the gavel of Her Honor Mardea Tarr-Chenoweth, Resident Circuit Judge, on the 11th day of April, 2012, entered Final Ruling against FIRESTONE and in favor of the AGGRIEVED PPD PERSONNEL, reversing the Labor Commissioner's Ruling and adjudging FIRESTONE liable to the AGGRIEVED PPD PERSONNEL for the aggregate amount of US\$1,267, 233.70 (United States Dollars One Million Two Hundred Sixty-seven Thousand Two Hundred Thirty-Three 70/100) broken down as follows:

(i)	Overtime Compensation and refund of security deposits/bond made via salary deductions (Active PPD totaling (331)	US\$1,162,898.36
(ii)	Overtime Compensation and refund of Security deposits/bonds made via salary Deductions (Non-Active PPDs totaling 64)	<u>US\$ 104,335.34</u>
	Total	<u>US\$1,267,233.70</u>

WHEREAS, FIRESTONE, being again dissatisfied with the Final Ruling of Her Honor Judge Mardea Tarr-Chenoweth of the 13th Judicial Circuit Court for Margibi County, excepted to same and announced an appeal to the Honorable Supreme Court of Liberia, sitting in its October Term, 2012, filed a bill of exceptions and thereafter proceeded to perfect and did perfect its appeal within term time and in consequence thereof, the said case is now pending before the Honorable Supreme Court of Liberia; and

WHEREAS, notwithstanding the pendency of the appeal, the parties-FIRESTONE and the AGGRIEVED PPD PERSONNEL—initiated discussions and negotiations aimed at expeditiously and amicably resolving the matter short of litigating same at the Honorable Supreme Court of Liberia; and

WHEREAS, based on the discussions and negotiations of the parties, they have agreed to withdraw, terminate and abate the appeal pending before the Supreme Court of Liberia subject to the terms and conditions herein set forth and contained;

NOW THEREFORE THESE PRESENTS:

ARTICLE 1
PREMISE OF THE AGREEMENT

SECTION ONE
ACKNOWLEDGMENT OF RELATIONSHIP

The Parties hereto mutually acknowledge, accept and stipulate that the total number of persons constituting the class herein referred to as the AGGRIEVED PPD PERSONNEL is five hundred and five (505).

SECTION TWO BENEFICIARIES

That the benefits and obligations of this Agreement shall respectively inure to and be binding on all five hundred and five (505) individuals—whether or not currently in the employ of FIRESTONE, retired, terminated or deceased.

SECTION THREE NEGOTIATED AMOUNT FOR OVERTIME AND REST PERIOD

1.3.1. That the negotiated, agreed upon, and accepted combined overtime and rest period (hereinafter "overtime") is one and one-half (1.5) hours per day which the parties mutually acknowledge, and the AGGRIEVED PPD PERSONNEL expressly accept that one (1) hour per day has already been paid by FIRESTONE during the relevant period, which relevant period is herein defined as May 12, 2006, thru August 31, 2012. This is to say, the unpaid overtime during the relevant period which FIRESTONE undertakes to pay and the AGGRIEVED PPD Personnel agree to accept pursuant to this Agreement is one-half (1/2) hour or thirty (30) minutes per day over the relevant period.

1.3.2. That based on Paragraph 1.3.1 above, the calculated gross aggregate compensation for overtime during the relevant period is US\$154,235.11 (United States Dollars One Hundred Fifty-four Thousand Two Hundred Thirty-five 11/100).

SECTION FOUR FUTURE OVERTIME AND REST PERIOD COMPENSATION

The parties mutually agree that commencing September 1, 2012, FIRESTONE shall pay, and the AGGRIEVED PPD PERSONNEL, as well as those who may be hired by FIRESTONE and deployed as PPD personnel shall accept compensation for one and one-half (1.5) hours per day to cover (i) services rendered during rest period (ii) time spent during muster, and (iii) possible delays in transport. The one and one-half (1.5) hours per day comprise (a) the one (1) hour already being paid daily by FIRESTONE plus an additional thirty (30) minutes. Therefore, for clarity and avoidance of doubt, it need be said that the one and one-half (1.5) hours is not in addition to the one (1) hour already being paid, but is in place of it.

SECTION FIVE REFUND OF AMOUNTS DEDUCTED/WITHHELD FOR BOND

1.5.1. That FIRESTONE undertakes to refund all amounts deducted and/or withheld from the salaries of the AGGRIEVED PPD PERSONNEL during the relevant period. Said deductions aggregate US\$111,195.00 (United States Dollars One Hundred Eleven Thousand One Hundred Ninety-five).

1.5.2. That effective September 1, 2012, FIRESTONE shall discontinue the policy of withholding amounts from the salaries of its PPD personnel as security deposit/bond for uniforms and other gear issued by FIRESTONE and necessary for, or required in connection with the performance of his/her duty as PPD personnel.

SECTION SIX
CONTRIBUTION OF LITIGATION EXPENSES

1.6.1. The parties mutually acknowledge, based on representation of the AGGRIEVED PPD PERSONNEL, that the fees charged by, and payable to the legal counsel of the AGGRIEVED PPD PERSONNEL is US\$66,357.53 (United States Dollars Sixty-six Thousand Three Hundred Fifty-seven 53/100) representing twenty-five percent (25%) of the settlement amount of US\$265,430.11 (United States Dollars Two Hundred Sixty-five Thousand Four Hundred Thirty 11/100).

1.6.2. That FIRESTONE agrees and firmly undertakes to pay or cause to be paid the amount of US\$26,543.01 (United States Dollars Twenty-six Thousand Five Hundred Forty-three 1/100) same being ten percent (10%) of the aggregate amount payable to the AGGRIEVED PPD PERSONNEL. This amount represents FIRESTONE's contribution to the defrayment, by the AGGRIEVED PPD PERSONNEL, of the legal fees associated with the litigation of the case from the level of the Ministry of Labor (Labor Commissioner for Margibi County) to the 13th Judicial Circuit Court for Margibi County, the Final Judgment of the latter of which is pending on appeal before the Honorable Supreme Court of Liberia.

1.6.3. That the balance amount of the legal fees in the amount of US\$39,814.52 (United States Dollars Thirty-nine Thousand Eight Hundred Fourteen 52/100), same being fifteen percent (15%) of the settlement amount of US\$265,430.11 (United States Dollars Two Hundred Sixty-five Thousand Four Hundred Thirty 11/100). This amount FIRESTONE is hereby authorized to (i) deduct from the payment of each of the AGGRIEVED PPD PERSONNEL proportionally, (ii) add the aggregate to its contribution of US\$26,543.01 (United States Dollars Twenty-six Thousand Five Hundred Forty-three 1/100) and (iii) issue a check for the full amount of US\$66,357.53 (United States Sixty-six Thousand Three Hundred Fifty-seven 53/100) in favor of the legal counsel for the AGGRIEVED PPD PERSONNEL in settlement of their legal fees.

ARTICLE II
THE AGREEMENT

2.1. That in consideration of the aggregate gross amount of US\$291,973.12 (United States Two Hundred Ninety-one Thousand Nine Hundred Seventy-three 12/100) expressly and firmly undertaken to be paid by FIRESTONE and agreed to be accepted by the AGGRIEVED PPD PERSONNEL and in further consideration of all the other undertakings, acknowledgements, and stipulations set forth in the said ARTICLE I of this Agreement, FIRESTONE and the AGGRIEVED PPD PERSONNEL hereby mutually and voluntarily agree to withdraw, terminate, and abate the case: *OTOSO COLE et al. VERSUS THE MANAGEMENT OF FIRESTONE LIBERIA INC.* pending on appeal before the Honorable Supreme Court of Liberia, thereby bringing finality to said case.

2.2. That the agreed aggregate gross consideration of US\$291,973.12 (United States Dollars Two Hundred Ninety-one Thousand Nine Hundred Seventy-

three 12/100) referred to in Paragraph 2.1 of this ARTICLE II above, is broken down as follows:

(i) Compensation for overtime	US\$154,235.11
(ii) Refund of Bonds	<u>US\$111,195.00</u>
Sub-Total	US\$265,430.11
(iii) Add: FIRESTONE contribution	
to legal and other expense	<u>US\$ 26,543.01</u>
Total	<u>US\$291,973.12</u>

2.3. That the gross consideration of US\$291,973.12 (United States Dollars Two Hundred Ninety-one Thousand Nine Hundred Seventy-three 12/100) in Paragraph 2.2 above, when adjusted for (i) income tax of US\$5,741.22 (United States Dollars Five Thousand Seven Hundred Forty-one 22/100) on the overtime component of the compensation and (ii) deduction of legal fees in the amount of US\$66,357.53 (United States Dollars Sixty-six Thousand Three Hundred Fifty-seven 53/100), yields a net distributable amount of US\$219,874.37 (United States Dollars Two Hundred Nineteen Thousand Eight Hundred Seventy-four 37/100).

2.4. That in furtherance of Paragraph 2.1 above, the parties hereby direct and instruct their respective legal counsel to withdraw, terminate and abate or cause to be withdrawn, terminated and abated the herein mentioned case pending before the Honorable Supreme Court of Liberia by filing with the Clerk of said Court the necessary papers including, without limitation, but in particular, a Joint Voluntary Withdrawal/Discontinuance and Abatement of the case.

2.5. The AGGRIEVED PPD PERSONNEL hereby release and forever discharge FIRESTONE, its management, agents, and affiliates from any claims or demands in connection with the subject of this Agreement and the case pending on appeal before the Honorable Supreme Court of Liberia, which forthwith be withdrawn, terminated and abated upon execution of this Agreement.

2.6. That supplementary to this Agreement, each beneficiary and/or his/her legal representative shall, upon or at the time of payment, execute an individual Receipt/Release (i) acknowledging and acceding to this Agreement in its entirety, (ii) acknowledging receipt of payment, and (iii) undertaking, consistent with Paragraph 2.7 of this ARTICLE II below, not to hereafter assert any claim or institute any action—administrative, judicial or quasi-judicial—against FIRESTONE in connection with the overtime payment and deductions made for bond subject of this Agreement and the case pending on appeal before the Honorable Supreme Court of Liberia which shall be withdrawn, terminated, and abated consequent upon the execution of this Agreement.

2.7. That the AGGRIEVED PPD PERSONNEL hereby firmly undertake not to hereafter, whether each acting alone or in concert with others, assert any claim, make any demands on, or institute any action—administrative, judicial or quasi-

judicial—against FIRESTONE, its management, agents, and affiliates in connection with the subject matter of this Agreement and the case pending on appeal before the Honorable Supreme Court of Liberia, which case, as aforesaid, shall forthwith be withdrawn, terminated and abated pursuant to the terms hereof.

2.8. This instrument constitutes all the understanding, agreements and representations by the parties, and there are no oral or other written agreements or representations between the parties with respect to its subject matter. Further, were any other such agreements and representations to exist, the terms of this Settlement Agreement shall have an overriding effect.

2.9. The benefits and obligations of this Agreement shall respectively inure to and be binding upon the parties hereto and those whom they represent as if they were physically present and executed same.

IN WITNESS WHEREOF, THE PARTIES HERETO HAVE SET THEIR HANDS AND AFFIXED THEIR SIGNATURES HEREUNTO ON THE DATE FIRST ABOVE WRITTEN TO PREVAIL AND AVAIL WHEREVER, WHENEVER AND TO WHOMEVER THESE PRESENTS SHALL COME.

FOR: FIRESTONE LIBERIA, INC.—FRESTONE

BY: _____

Patrick Rodrigo

ACTING PRESIDENT & MANAGING DIRECTOR

FOR: AGGRIEVED PPD PERSONNEL

BY: _____

Gabriel K. Parkinson

EMPLOYEE REGISTRATION NO. 460127

J. Ootoso Cole

EMPLOYEE REGISTRATION NO. 463022

James K. Garlon

EMPLOYEE REGISTRATION NO. 462874

**FOR: FIRESTONE AGRICULTURAL WORKER'S UNION
"FAWUL"**

BY: _____

Austin Natee
PRESIDENT

WITNESS: _____

ATTESTED AND APPROVED:

FOR: MINISTRY OF LABOR

BY: _____
ASSISTANT MINISTER FOR TRADE UNION AFFAIRS"

As the settlement agreement supra, shows, the parties agreed to terminate and abate the appeal announced by the informant from the ruling entered by the Thirteenth Judicial Circuit Court, Margibi County; thereby, bringing to an end the controversy out of which the appeal emanated, and as consideration for the respondents' consent to end the dispute, the informant agreed to pay to the respondents the total amount of US\$291,973.12 (United States Dollars Two Hundred Ninety-one Thousand Nine Hundred Seventy-three 12/100) instead of the judgment amount of US\$1,267, 233.70 (United States Dollars One Million Two Hundred Sixty-seven Thousand Two Hundred Thirty-Three 70/100) as rendered by the Thirteenth Judicial Circuit Court.

The records show further that on the same date of the execution of the Settlement Agreement, the respondents signed releases in their own names, releasing the informant management from all claims arising out of the case from which the Settlement Agreement emanated. Because all the releases contain the same information except for the names of the individual releasor, we reproduce below a copy thereof for the benefit of this Opinion:

"REPUBLIC OF LIBERIA)
MARGIBI COUNTY)

INDIVIDUAL RECEIPT/RELEASE

THIS RECEIPT/RELEASE is executed this 24th day of September 2012, by or for and on behalf of **Morris F. B. Foko**, with **Employee Registration No. 463021**, hereinafter known and referred to as the "**RELEASOR**", in favor of **FIRESTONE LIBERIA INC.**, represented by its Acting President and Managing Director, **Patrick Rodrigo**, hereinafter known and referred to as "**FIRESTONE**", hereby;

WITNESSETH:

WHEREAS, on the 24th day of September, 2012, **FIRESTONE** and the **AGGRIEVED PPD PERSONNEL** executed an Agreement for the out-of-court settlement of the case: **OTOSO COLE ET. AL VERSUS THE MANAGEMENT OF FIRESTONE LIBERIA INC.** pending on appeal before the Honorable Supreme Court of Liberia. The said Settlement Agreement is hereby incorporated into, and made an integral part of this **INDIVIDUAL RECEIPT/RELEASE** by reference; and

WHEREAS, I, the undersigned, have agreed personally to benefit or for the person whom I represent to benefit from and receive payment under the referenced Settlement Agreement and to thereby be bound by all its terms and conditions; and

WHEREAS, in view of the representations set forth and contained in the First and Second Recital Paragraphs above, I have further agreed to execute this **INDIVIDUAL RECEIPT/RELEASE** on the terms and conditions herein set forth and contained;

NOW THEREFORE THESE PRESENTS:

1. That for and in consideration of the net amount of **US\$526.57 (United States Dollars Five Hundred Twenty-Six, Fifty-Seven Cents)** paid by FIRESTONE, receipt of which is hereby acknowledged, I, the undersigned, for myself and /or acting in a representative capacity, do hereby acknowledge, accede to, and accept as firmly binding the terms of the referenced Settlement Agreement. To this end, I hereby release and forever discharge FIRESTONE, its management, agents, and affiliates from any and all claims and demands, present and future, in connection with the subject matter of the said Settlement Agreement.

2. That the net consideration of **US\$526.57** paid by FIRESTONE and received by the undersigned is calculated and derived as follows:

Overtime Compensation (gross)	\$329.40
Less: Legal Fees	\$ 94.41
Net Overtime Before Tax	\$234.99
Less: Income Tax	\$ 8.42
Net Overtime After Tax	\$226.57
Add: Non-Taxable Refund of Bond	\$300.00
Net Settlement Amount	\$526.57

3. That in keeping with Paragraph 2.7 of the referenced Settlement Agreement, I, the undersigned, hereby firmly undertake not to hereafter, whether acting alone or in concert with others, assert any claim, make any demands on, or institute any action – administrative, judicial or quasi-judicial – against FIRESTONE, its Management, agents, and affiliates in connection with the subject matter of the Settlement Agreement.

4. That I, the undersigned, do hereby voluntarily bind myself, my heirs, administrators, executors, or in the case of a legal representative of a beneficiary under the Settlement Agreement, such beneficiary himself/herself to the terms of this instrument as if each of them personally negotiated and executed same.

IN WITNESS WHEREOF, I, THE UNDERSIGNED, HAVE SET MY HAND AND AFFIXED MY SIGNATURE HERETO ON THE DAY AND DATE FIRST ABOVE WRITTEN.

WITNESS

Morris F. B. Foko
"RELEASOR"

OR

IN THE CASE OF A BENEFICIARY REPRESENTED A THIRD PARTY

For: XXXXXXXXXXXXXXXXXXXX
(RELEASOR)

BY: _____

WITNESS
XXXXXXXXXXXXXXXXXXXX
LEGAL REPRESENTATIVE"

Based on the Settlement Agreement and the releases executed by the respondents, counsels representing the parties filed a Joint Stipulation of Withdrawal and Abatement on December 2, 2012, before the Supreme Court, seeking to withdraw the informant's appeal pending before the Court. The Joint Stipulation of Withdrawal and Abatement filed by the parties, was approved by His Honor Phillip A.Z. Banks, III, now-retired Associate Justice of the Supreme Court on December 11, 2012. We reproduce below the referenced Joint Stipulation of Withdrawal and Abatement:

"JOINT STIPULATION OF WITHDRAWAL AND ABATEMENT"

Firestone Liberia, Inc., Appellant, and Ootoso Cole et al., Appellees in the above-entitled case most respectfully pray Your Honors for the withdrawal and abatement of, and hereby withdraw and abate the Appeal in the above-entitled case, and thereby terminate the Petition for Judicial Review and the Action of Unfair Labor Practices out of which the Appeal grew, and for legal and factual reasons sheweth the following, to wit:

1. That Rule III, Part II of the 1999 Revised Rules of the Supreme Court provides that the appellant and appellee may, in vacation by themselves or counsel, sign and file with the Clerk of the Supreme Court an agreement in writing, directing the case to be withdrawn; and as to cost, shall pay to the Clerk any fee that may be due.
2. That in full knowledge of the law cited above, and a certain Settlement Agreement executed on the **24th day of September, 2012**, by and between Appellant and Appellees, Specifically **Paragraph 2.4** thereof, Appellant and Appellees have instructed their respective legal counsel to file a Joint Stipulation of Withdrawal and Abatement, thereby terminating the Appeal and the case out of which said Appeal emanates in its entirety and forever. The said Settlement Agreement, copy of which is hereto attached, is hereby incorporated into, and made an integral part of this Joint Stipulation by reference.
3. That predicated on the law cited above, and the averments contained in Count Two (2) immediately above, Appellant and Appellees pray Your Honors as follows:
 - (I) That the Appeal emanating from the Petition for Judicial Review be, and the same is hereby withdrawn, abated, and terminated forever.
 - (II) That a Judgement Without Opinion be rendered by the Honorable Supreme Court of Liberia in the Appeal during its October Term, A. D. 2012.
 - (III) That this Joint Stipulation of Withdrawal and Abatement be filed by the Clerk of the Supreme Court; and by that filing, the Appeal in the Petition for Judicial Review and the case in its entirety be terminated forever.

Respectfully submitted,
FIRESTONE LIBERIA INC.

APPELLANT

By and thru its Legal Counsel:
Sherman & Sherman
R. Fole Sherman Law Building
17th Street & Cheesemen Avenue, Sinkor
Monrovia, Liberia

J. Johnny Momoh
COUNSELLOR-AT-LAW

G. Moses Paegar
COUNSELLOR-AT-LAW

AND

THE AGGRIEVED PPD PERSONNEL
APPELLEES

By and thru their Legal Counsel:
Kemp & Associate Legal Consultancy
S & G Building, Cary Street
Monrovia, Liberia

Theophilus C. Gould
COUNSELLOR-AT-LAW

DATED THIS 2ND DAY OF NOVEMBER, 2012

APPROVED: _____
HIS HONOR PHILIP A. Z. BANKS, III
ASSOCIATE JUSTICE
THE HONORABLE SUPREME COURT OF LIBERIA"

Nearly four years after the filing and approval of the Joint Stipulation of Withdrawal and Abatement, that is, on November 14, 2016, the CEMAR Law Offices, representing the respondents as additional counsel, filed a legal brief before the Supreme Court, presenting legal arguments on the appeal announced and perfected by the informant from the final ruling of the Thirteenth Judicial Circuit Court. In response to the filing of legal brief by the respondents in the case, the informant, Management of Firestone Liberia Inc., through its counsel, Sherman & Sherman Inc., wrote the Clerk of the Supreme Court on March 16, 2018, informing him that the case had been abated and that the case is no longer on the Supreme Court's docket. We quote below the informant's counsel letter to the Clerk of the Supreme Court:

"March 16, 2018 |

The Clerk |

The Honorable Supreme Court of Liberia

Temple of Justice |

Capitol Hill |

Monrovia, Liberia |

Mr. Clerk:

This letter comes to advise that recently we, Sherman & Sherman, Inc., as legal counsel for Firestone Liberia Inc., Respondent/Appellant in the above-captioned case, which was pending before the Honorable Supreme Court of Liberia, received copy of a purported Notice of Additional Counsel from the Petitioners/Appellees. We also received copy of the purported brief filed by the Petitioners/Appellees. We surmise that the purpose of these instruments is to place Respondent/Appellant Firestone on notice that the said case could be called at any time for hearing by the Honorable Supreme Court.

The purpose of this communication is to inform you that the above referenced case is no longer pending before the Honorable Supreme Court of Liberia. As evidence by the attached, the case was withdrawn on December 11, 2012, via the filing, by the parties, of a Joint Stipulation of Withdrawal and Abatement with the then Acting Clerk of Court, Floyd M. Gulu, which Stipulation was approved by His Honour Philip A. Z. Banks, III, Associate Justice presiding in Chambers at the time. The Petitioners/Appellees were represented by Kemp & Associates, and the late Cllr. Theophilus C. Gould signed the Stipulation in their behalf while Respondent/Appellant Firestone Liberia was represented as aforesaid, by Sherman & Sherman. Counsellor J. Johnny Momoh and the undersigned, executed the Stipulation.

We attach hereto in bulk as **ANNEXURE**, "A" and for your easy reference, copies of (i) The Joint Stipulation of Withdrawal and Abatement, (ii) the Settlement Agreement executed on the 24th day of September, 2012, signed by Patrick Rodrigo for Respondent/Appellant, Firestone Liberia on the one hand, and Gabriel K. Parkinson, J. Ootoso Cole, and James K. Garlon for the Petitioners/Appellees (you will observe that the Settlement Agreement was attested by the Ministry of Labor), on the other hand, and (iii) Firestone's Check No U-105671 value dated 09-25-2012, for amount of US \$66,357.53 (United States Dollars Sixty-six Thousand Three Hundred fifty-seven 53/100) paid by Firestone to then Atty. David Woah of the Kemp & Associate Law Firm, representing the legal fee of said firm in substantiation of the averments contained herein. We reiterate and strenuously contend that the above case is no longer before the Honorable Supreme Court and this therefore obviates the need for our filing a brief.

Finally, we are constrained to sadly conclude that the Petitioners/Appellees are bent on working mischief under the mistaken notion that because Cllr. Gould is now in sainted memory, no record would be available or memory would have failed, thereby giving them the advantage of furthering their nefarious scheme.

Respectfully Submitted,

SHERMAN & SHERMAN, INC.
COUNSEL FOR RESPONDENT/APPELLANT
FIRESTONE LIBERIA, INC.

G. Moses Paegar
COUNSELLOR-AT-LAW

In response to the above-quoted informant's counsel letter, the respondents addressed a letter to the Clerk of the Supreme Court on March 24, 2018, disavowing the Joint Stipulation of Withdrawal and Abatement filed with and approved by the Court on December 11, 2012. The respondents' letter is quoted hereinbelow in its entirety:

**AGGRIEVED PPD EMPLOYEES
FIRESTONE, HARBEL
MARGIBI COUNTY, LIBERIA**

March 24, 2018

Filed: March 26, 2018

The Clerk
Honorable Supreme Court of Liberia
Temple of Justice
Monrovia, Liberia

Dear Mr. Clerk:

The attention of the Aggrieved PPD Personnel is drawn to a certain communication said to have been written by Sherman & Sherman Inc., in respect to the purported withdrawal and subsequent abatement of the case: **Otoso Cole et al v. Firestone Liberia** from the Supreme Court of Liberia, with the attachment of a throng of documents labeled as **"Annexure A"** in support of such false claims.

What is amazing, and which should have been the best evidence that the communication should have presented, is the woeful failure of Sherman & Sherman Inc., to attach the purported instruction or directive allegedly authorizing or instructing the Appellees' counsel by the Aggrieved PPD Personnel to have the matter that was already pending before the Full Bench of the Honorable Supreme Court withdrawn and abated.

The failure of Sherman & Sherman to attach the purported instruction given to the Appellees' counsel to withdraw and discontinue the matter is further compounded by a fictitious "Joint Stipulation of Withdrawal and Abatement" allegedly filed with the Supreme Court of Liberia, which is neither signed nor attested to, by the **"AGGRIEVED PPD PERSONNEL"**.

While the Aggrieved PPD Personnel cannot easily verify the authenticity of the signature of His Honor Mr. Justice Phillip A.Z. Banks, III, on what purports to be a "Joint Stipulation of Withdrawal and Abatement" notwithstanding, it is absolutely inconceivable as to how a purported joint stipulation of withdrawal and abatement could have been filed with the Honorable Supreme Court without the signature of any of the Aggrieved PPD Personnel.

Besides, it is but an astounding drama, and we are not surprised at all, that the Sherman & Sherman Inc., knew or has reason to know that the so-called out of court settlement is fictitious and for this reason, it failed to provide any compelling evidence to prove that the **AGGRIEVED PPD PERSONNEL** ever instructed or directed their

legal counsel to withdraw, terminate and abate the case before the Honorable Supreme Court of Liberia as alleged in count 2.4 of the purported Settlement Agreement that is attached to its communication.

Further, it is now clear that the purported "Joint Stipulation of Withdrawal and Abatement Agreement" which was filed by Sherman & Sherman Inc., was exclusively done by Sherman & Sherman Inc., and the late Cllr. Theophilus C. Gould without the knowledge of the "AGGRIEVED PPD PERSONNEL" as evidenced by the records in the case file, and because of that the late Cllr. Gould was summarily dismissed thereafter. See a copy of the letter of dismissal attached as **"Exhibit A/1"**.

While it is true that the Aggrieved PPD Personnel did receive the amount of US\$291,973.12 (Two Hundred Ninety-one Thousand Nine Hundred Seventy-three Dollars Twelve Cents) as initial settlement against US\$104,335.34 and US\$1,267,233.70 respectively, representing refund of security deposits/bonds, the Aggrieved PPD Personnel were informed that the balance of the money would have been paid when the Honorable Supreme Court rule in the matter.

It must be noted that the Aggrieved PPD Personnel did not sign any Notice of Withdrawal and Abatement with the Supreme Court, because they rightfully believe that the amount of US\$1,371,569.04 (One Million Three Hundred Seventy-One Thousand Five Hundred Sixty-Nine Dollars Four Cents) is still outstanding and there is no way that the Aggrieved PPD Personnel could have ever waived such huge amount in a bogus settlement agreement. See attached the fake settlement agreement marked as **"A/2"**.

More besides, it must be strongly noted that the settlement agreement presented by Sherman & Sherman Inc., is fraudulent, and the signatures thereon are superimposed as evidence by the barrage of black marks which decorate the agreement. Also, the letter of authorization for the deduction of 25% as legal fee specifically designated account #80051030 at International Bank Liberia Limited but because Sherman & Sherman wanted to play games at the detriment of the Aggrieved PPD Personnel, it surreptitiously designated a fictitious account #04-00-003596 at the International Bank Liberia Limited which is absolutely unknown to the Aggrieved PPD Personnel. See a copy each of the check filed by Sherman & Sherman Inc., bearing different account number attached as **A/3 in Bulk**.

Furthermore, the calculation of 25% against the combine sum of US\$1,267,233.70 which is the aggregate amount of monetary award that the Aggrieved PPD Personnel are entitled to, is not US\$66,357.53, as indicated by the purported check presented by Sherman & Sherman Inc., and even were that to be a change of calculation in fees to counsel, same should have been done with the acquiescent participation of the Aggrieved PPD Personnel to the account which was designated.

Finally, it is any wonder that Sherman & Sherman Inc., whose recent records in public service are quite terrifying, too can accuse others of mischief without providing any evidence that the Aggrieved PPD Personnel ever authorized or mandated their legal counsel to withdraw and abate the case from the docket of the Honorable Supreme Court of Liberia. That being the case, we challenge Sherman & Sherman Inc., to prove the contrary, and therefore crave the indulgence of the Honorable Supreme Court of Liberia to proceed with the matter or alternatively compel Sherman & Sherman Inc., to instruct his client, Firestone Liberia to pay the balance of

US\$1,371,569.04 (One Million Three Hundred Seventy-one Thousand Five Hundred Sixty-nine Dollars Four Cents) since the purported out of court settlement alluded to is a form of confession of judgment.

Thanks.

Henry Flomo

Nelson Johnnie

Gabriel K. Parkinson

Cc: CEMAR LAW OFFICES
Sherman & Sherman Inc."

This Court, taking cognizance of the records, finds that despite these occurrences as narrated above, the CEMAR Law Offices subsequently requested the Court for a hearing of the appeal filed by the Informant Management of Firestone Liberia, Inc. against the ruling entered by the Thirteenth Judicial Circuit Court on April 11, 2012. The Court had the matter assigned for hearing, on March 28, 2018. At the call of the case, and upon announcement of representations, counsels representing the Management of Firestone Liberia, Inc., Sherman and Sherman, Inc., made the following submission on the records of the Courts:

"SUBMISSION: The appellant's counsel informs Your Honor that on December 2, 2012, the appellant and the appellees through their legal representatives filed with this Honorable Court a Joint Stipulation of Withdrawal and Abatement which was approved by His Honor Phillip A.Z. Banks, III, and that the said Joint Stipulation of Withdrawal and Abatement grew out of the settlement of the action between the appellant and the appellees as evidence by a Settlement Agreement executed by the parties on September 24, 2012. Appellant says therefore that the parties have settled this matter and a Joint Stipulation signed by the counsels and approved by Mr. Justice Phillip A.Z. Banks, III, was filed with this Court. The appeal announced by the appellant is therefore moot, and counsel respectfully requests Your Honor to enter upon the settlement and withdrawal of this matter. And respectfully submits."

The respondents' counsel resisted the submission made by the informant's counsel as follows:

"RESISTANCE: Appellees counsel in strongly resisting the application made by the counsel for the appellant says the following:

- 1. That the information regarding a purported settlement agreement is false and misleading and that there was never any settlement agreement between the parties. Counsel says that the appellees hereby challenge the appellant to produce the original of the purported settlement agreement.*
- 2. Counsel says while it is true that a settlement agreement was circulated by the Sherman and Sherman, Inc., in 2012, to the appellees, same was never signed by the appellees because in section 2.4 of the purported agreement, it is stated that the appellees directed and instructed their counsel to withdraw the matter from the Court, which is not the case. And also, in count 2.7 of the purported agreement, as a form of release, each personnel of the appellees was required to execute a release to the effect that the matter*

has been withdrawn. That also was rejected. Counsel says that in the only agreement executed entitled: Power of Attorney, for deduction of 25% of the US\$1,267,336. A specific account was designated for the payment of the said legal fees, but Sherman and Sherman surreptitiously and without the knowledge of the appellees, paid 25% of over US\$291,000.00 designating it as a settlement agreement of the over one million United States Dollars that was awarded the appellees. Counsel says that the letter designating the account was signed by appellees, which is in the Court's file.

3. Counsel says that the only record that appears to be authentic is the Joint Stipulation of withdrawal that was approved by His Honor Mr. Justice Phillip A.Z. Banks, III but that no instrument was given to the appellees' counsel to withdraw the matter from this Court as alleged in count 2.4 of the purported settlement agreement. Counsel says affidavits duly notarized and supporting documents have been filed with the Court in support of the allegation made that there was no authorization given to withdraw this matter.
4. Counsel says that the signature on the purported Settlement Agreement referred to earlier, are superimposed and that the original settlement agreement which is unsigned has been filed with this Court to demonstrate that there was never any signed agreement as alleged by the appellant. Counsel says that while it is true that appellees were given the amount of US\$291,000.00 by the appellant, under the pretext that the balance of over one million United States Dollars would be paid after the rendition of Final Judgment by the Supreme Court, the appellees have not given the final waiver of the amount. That in 2016, the Sherman and Sherman begun circulating what purports to be a settlement agreement to the appellees and issued a letter of disclaimer which is also part of the records of this Court and same have been filed.

In view of the foregoing, it is the prayer of the appellees that the Sherman and Sherman having seen the legal soundness of appellees' agreement and having made a part payment of over US\$291,000.00 of monies representing deductions of their salaries and overtime, it should be made in the name of justice to make the full payment referred to earlier, since there is no records before this Honorable Court to suggest in any form and manner that the matter was dismissed with the behest or the approval of the appellees and waiver to any subsequent claim of the over US\$291,000.00 paid to appellees. And respectfully submits."

The Court, in view of the submission made by the informant's counsel and the resistance made thereto by the respondents' counsel, had the matter postponed to be reassigned.

Subsequently, the Lex Group Liberia, Inc. was retained by the Management of Firestone Liberia, Inc. to represent its interest in the matter. The Lex Group Liberia, Inc. on behalf of the Management of Firestone Liberia, Inc. filed a bill of information, the subject of this Opinion. The Bill of Information essentially seeks to have this Court disregard the communication written by the respondents to the Clerk of Court on March 24, 2018, disavowing the Joint Stipulation of Withdrawal and Abatement filed with the Supreme Court on December 2, 2012, and approved by Justice Phillip A.Z. Banks, III, on December 11, 2012. The relevant contentions of the informant's bill of information are as follows:

- (i) That the mere filing of a letter of complaint fraught with allegations that are unsupported by any evidence produced by the respondents on any record

that is before the Court, in and of itself, without more, is insufficient to reverse the withdrawal of the appeal which was approved by this Court. That the respondents cannot claim lack of knowledge of the existence and execution of the Settlement Agreement, and the authorization given to their legal counsel, as the authorization is contained in the settlement agreement itself, which obviates the necessity of the presentation of a separate instrument of authorization.

- (ii) That sustaining the case on the Court's docket on account of a letter written by the respondents alleging fraud without proof thereof is irregular, considering that the Supreme Court does not take evidence, and has taken no evidence before it to sustain the allegation made by the respondents whose only intent is to undermine the execution of the approval of this Court granting authority to the Clerk to enter the case withdrawn consistent with Rule III, Part 2 of the Revised Rules of the Supreme Court (1999).
- (iii) That notwithstanding the ploy of the respondents to resurrect the case which was withdrawn by the parties before the Supreme Court over ten (10) years ago, the respondents ignited a new case/complaint before the Labor Ministry, which is premised on the same Settlement Agreement. In their complaint filed, on June 23, 2022, this time through their Worker's Union (NAWUL), the respondents/complainants acknowledge that there was a settlement agreement between the parties, but contended that the provisions of the agreement of 2012 are inconsistent with the Decent Work Act (2015); hence, the Ministry of Labor should order that payments for lunch and other additional hours worked since the coming into force of the Decent Work Act in 2015 be made/paid to them, consistent with the Act and not the agreement.
- (iv) That the Bill of Information will lie to prevent any one whomever, and in particular the respondents from interfering with the order of this Court to the Clerk to enter the case withdrawn from the docket, by virtue of the Justice's approval of the stipulation of withdrawal signed by the counsels of the parties, pursuant to Rule III, Part 2 of the Revised Rules of the Supreme Court (1999).
- (v) Informant says that the letter written by the respondents to the Chief Justice which is premised on misrepresentations, half-truths and unsubstantiated accusations, is intended to interfere with, prevent, and subvert the Court from issuing a Judgment Without Opinion pursuant to the agreement of the parties.

The informant prays this Court to deny and dismiss the letter written by the respondents, grant the informant's information, and issue a Judgment Without Opinion in the case because of the voluntary withdrawal of the appeal by the parties, which was approved by this Court.

Upon issuance of the alternative writ of information commanding the respondents to file returns to the bill of information within the time specified in the writ, the respondents, *Otoso Cole et al.* in obedience thereto, filed a thirty-eight count returns to the bill of information. The relevant contentions of the respondents' returns are quoted below:

- (i) That this Court lacks both personal and subject matter jurisdiction over the case: *"National Timber Wood Construction and Allied Workers of Liberia by and thru its General Secretary Marcus Blamah for and on behalf of the PPD Personnel of Firestone-Liberia represented by and thru its General Manager Seamus Gunton"* which has been surreptitiously included in counts 14, 15, 16, 17 and 18 of the informant's bill of information that is still pending before the Justice in Chambers on a petition for a writ of certiorari from the National Labor Court for Montserrado County. See Title 1, 1LCLR Revised, Chapter 11, Section 11.2 (a)(d), Civil Procedure Law.
- (ii) This Court lacks subject matter jurisdiction to entertain or to be seized of a bill of information that is not a subject of any irregular enforcement of, or disobedience to or the usurpation of its judgment but that it is filed in bad faith solely to unduly arouse the interest of this Court to be seized of, and thereby dismiss a matter that is pending in the lower court or before the Chambers Justice over which it has neither exercised jurisdiction nor heard on appeal from a final judgment or from an interlocutory ruling of a chambers justice or which is not filed before it with the caption: *"in re"* in the case of a constitutional question.
- (iii) That although what purported to be a settlement agreement was prepared and circulated to all parties by Sherman & Sherman Inc., in 2012, but said document was never signed by the respondents, let alone, authorizing respondents' former counsel to withdraw the matter. See sheet 227 of the certified records of the case: *Otoso Cole et al. v. Firestone-Liberia, Inc.*
- (iv) That the contentious issue that the informant must understand is not whether a stipulation of withdrawal and abatement was filed but whether the conduct of the respondents' counsels in colluding with the informant was authorized and approved by respondents. To date, respondents submit that both the informant and respondents' former legal counsel have no answers.
- (v) That the settlement agreement which is now being heralded by the informant was dubiously meant to undercut the legitimate award the 13th Judicial Circuit had awarded respondents and thereby rob respondents of their entitlement in broad day light. It was rejected and never signed as stated inter alia because there were fraud, misrepresentation, concealment or other misleading incidents, designed to undercut the award that was granted by the 13th Judicial Circuit in favor of respondents as stated in their returns. See sheet 236 & 250 of the certified records of this Court for the purported settlement agreement containing the forged and superimposed signatures of some of respondents' members.
- (vi) That respondents call the attention of this Honorable Court to take judicial notice of the fact that the previous counsel in this cause of action, Sherman & Sherman Inc., presented what purported to be a settlement agreement allegedly signed by Gabriel Parkinson, with employee registration No. 460127, James K. Garlon, and Otoso Cole for and on behalf of the aggrieved employees, but now the newly hired counsels have pleaded in count 5 of their information that one Austin Netee said to have been the President of the Workers' Union (FAWUL) signed for and on behalf of the employee while the Labor Ministry attested to the agreement. But in two separate affidavits issued by Mr. Austin Netee and Michael Wah, who was the Assistant Minister for Trade Union Affairs at the time, they both denied the

informant's claims as false and misleading. Attached hereto and marked as **Exhibit R/4** are the two separate affidavits issued by both Austin Natee and Michale Wah.

- (vii) That when the issue of the respondents signing a waiver and a release based on a purported settlement agreement was raised in 2018, the document was strenuously challenged and described as fraudulent and the informant/appellant counsels at the time were openly challenged to produce the original of the selfsame document but they have failed. Again, respondents hereby throw out the same challenge to the same informant as before to prove the contrary. See sheet 236 & 250 of the certified records bearing the purported signature of Gabriel Parkinson and the minutes of the 3rd day's session, Wednesday, March 18, 2018 of this Honorable Court. Both James K. Garlon and Ootoso Cole have issued separate affidavits attached hereto and marked as **Exhibit R/5**.
- (viii) That there can be no legal effect of a voluntary withdrawal of an appeal before this Honorable Court that is done without the express consent and approval of a party litigant by means of a legal instrument duly executed in writing authorizing or instructing its counsel to do so. This Court has never relied upon and has gone beyond the phrase "either counsel" as used in Rule III, Part 2 of the Revised Rules of the Supreme Court (1999). This Court will never order the withdrawal and abatement of a matter before it absent the express approval by means of a legal instrument duly executed by a party litigant for the withdrawal and abatement of a matter before it. Respondents say and submit that the mere reliance on the phrase "either counsel" as a basis of informant's information absent the express approval of the execution of a legal instrument instructing its counsel for the withdrawal and abatement of the matter should be ignored and dismissed.
- (ix) That the respondents were never advised and did not have any knowledge that the matter had been surreptitiously withdrawn even after the respondents' refusal to sign the settlement agreement and therefore the entire information should be denied and dismissed.
- (x) That respondents deny the fallacious claims made by the informant that the case: *Ootoso Cole et al, v, Firestone-Liberia, Inc.* was withdrawn and abated over ten years ago through the Workers' Union (FAWUL) as a result of a settlement agreement. Respondents say there was never any settlement agreement that was duly signed and approved by the respondents. Therefore, the entire bill of information should be denied and dismissed and the hearing of the appeal be proceeded with.
- (xi) That it is a wonder that both the informant and its benefactors do not understand or rarely understand that there is a difference between the case on appeal which is *Ootoso Cole et al v. Firestone-Liberia Inc.*, and the case: *National Timber Wood Construction and Allied Workers' Union of Liberia (NTWCAWU) by and thru its General Secretary, Mr. Marcus S. Blamah for and on behalf of the PPD Personnel of Firestone Liberia v. Firestone-Liberia* represented by and thru its General Manager Seamus Gunton. Respondents submit and say what the informant must understand is that these are two separate cases with different parties but the same cause of action/petition for judicial review growing out of an unfair labor practice,

the first one occurring between the year 2005 to 2009 and the second from 2012 to 2017.

- (xii) That the informant proffered "Exhibit I/5" purportedly containing several individual receipts/releases said to have allegedly been executed by some of the aggrieved employees in which the informant claimed that the employees released and forever discharged informant of any further obligation and that bulk of the individual releases were signed and witnessed by James K. Garlon. But in an affidavit of disclaimer issued by James K. Garlon, he denied ever signing or witnessing any waiver or release for any employee and further added that the signature appearing on most of the purported receipt/releases proffered to the informant by the informant is fraudulent and does not represent his signature. Further, both James K. Garlon and Ootoso Cole executed separate affidavits of disclaimer to the effect that they never signed any settlement agreement. See sheet 230 and 232 of the certified records, James K. Garlon's affidavit of disclaimer denying ever signing and witnessing individual receipts and release of waiver in favor of the informant.
- (xiii) That this matter has lasted for eleven (11) years on the court's docket and respondents have been suffering, enduring hardships and travelling between Monrovia and Harbel under the sun and in the rain just to get justice all because of the atrocious conduct of the informant, and therefore whatever was paid to the respondents under the purported settlement arrangement that was never signed be treated as a goodwill gesture and respondents should be paid twice the monetary award that was awarded in favor of the respondents by the 13th Judicial Circuit in 2012.

The respondents therefore pray this Court to deny and dismiss the informant's bill of information and order the appeal in the Ootoso Cole case proceeded with, and to warn the informant to desist from all and any further actions or activities geared at forestalling the case."

The respondents filed along with their returns a motion to dismiss the informant's bill of information. The motion to dismiss avers that this Court lacks subject matter over this matter, and that this Court also lacks personal and subject matter jurisdiction over the case: *National Timber Wood Construction and Allied Workers' Union of Liberia (NTWCAWU) by and thru its General Secretary, Mr. Marcus S. Blamah for and on behalf of the PPD Personnel of Firestone Liberia v. Firestone-Liberia* represented by and thru its General Manager Seamus Gunton, which has been surreptitiously included in the informant's/respondent's bill of information but that is still pending before the Justice in Chambers on a petition for the writ of certiorari from the National Labor Court for Montserrado County. Regarding this Court's lack of subject matter jurisdiction over the bill of information, the respondents contend in their motion to dismiss that the bill of information is not a subject of any irregular enforcement of, or disobedience to or the usurpation of this Court's Judgment but that it is filed in bad faith solely to unduly arouse the interest of this Court to be seized of, and thereby dismiss a matter that is pending in the lower court or before the Chambers Justice over which it has neither

exercised jurisdiction nor heard on appeal from a final judgment or from an interlocutory ruling of a Chambers Justice or which is not filed before it with the caption: "in re" in the case of a constitutional question; that the entire bill of information is dismissible and must be dismissed as a matter of law on grounds that rather than pointing out a judgment of the Court or a specific portion of the judgment of the Court that is being disobeyed, irregularly enforced or obstructed by respondents/movants, the informant/respondent, set out to re-litigate a new form of action under the pretext of a bill of information and thereby reintroduce to this Court fictitious documents that were never introduced into evidence, testified to, identified, confirmed, reconfirmed and marked by the court below or documents that are not part of this Honorable Court's certified records.

In response to the respondents' returns and motion to dismiss, the informant filed a reply and a resistance traversing the averments therein contained. The informant contends as follows in its reply to the respondents' returns:

- (I) That the matter forming the basis of the bill of information is a matter currently pending before this Court, and in which the respondents are irregularly attempting to obstruct the execution of this Court's approval of the withdrawal of the case from its docket, based on a stipulation of withdrawal and abatement signed by the respective legal counsels of the parties and approved by the Court. Informant says that its bill of information does not grow out of the *National Timber Wood Construction and Allied Workers of Liberia v. Firestone* case; the averments and the substance of Informant's bill of information are very clear. The substance of Informant's information is that although the court approved a stipulation of withdrawal and abatement which grew out of a settlement agreement executed by the parties, and the respondents individually received the benefits and consideration under the settlement agreement, and issued Receipt releases acknowledging the existence and consummation of the settlement agreement, the respondents are now attempting to obstruct, and reverse through irregular means, the decision made by this Court to approve the withdrawal of the appeal.
- (II) That the significance of the mention of the pendency of the case *National Timber Wood Construction and Allied Workers of Liberia v. Firestone Liberia*, was to inform the Court that in respondents' letter of complaint of June 23, 2022, to the Ministry of Labor, respondents acknowledged that a settlement agreement did exist between the parties, which was dated September 24, 2012, but that portion of the agreement related to future payments was inconsistent with the Decent Work Act of 2015.
- (III) That the approval of the stipulation of withdrawal and abatement by a Justice in Chambers of this Court is an act or decision of the Court which the respondents are seeking to obstruct or interfere with, based on the unfounded allegation that the lawyers who represented them, were not authorized to sign and file the stipulation of withdrawal and abatement.
- (IV) That the respondents each acknowledged the settlement agreement (although they allege that "*we (they) were hurried into an arrangement and paid little or nothing*"). Section 2.4 of the agreement provided clear instructions to the respective legal

counsels of the parties, to terminate and withdraw the case; respondents received benefits/payments under the agreement, and each executed a receipt-release in favor of the informant. In each receipt release, the settlement agreement was referenced and incorporated. Therefore, respondents cannot claim lack of knowledge of the existence and execution of the settlement agreement, and the authorization given to their legal counsel, as the authorization is contained in the settlement agreement itself, which obviates the necessity of presentation of a separate instrument of authorization. Informant says further, that when the case was called during the March Term 2018, the court did not make any decision after the parties spread their respective submissions on the record. And hence, there is nothing that bars the informant from properly drawing the court's attention to the individual receipt releases which were signed by the respondents and their admission that they "we (they) were hurried into an arrangement and paid little or nothing" and other pertinent information relative to respondents attempt to obstruct a process that had been approved by the court. Of course, the issue of who "hurried" them, and the amount paid, is separate from that of the lack of knowledge of the arrangement and the execution of the receipt releases.

- (V) That the affidavits issued by Austin Natee, Michale Wah, Ootoso Cole and James K. Garlon are not conclusive evidence that the settlement agreement was not signed by them. The Court must consider the evidence as a whole. For example, the Court must consider the respondents' own admission that they were hurried into an arrangement and paid little or nothing; the Court must consider the fact that the respondents admitted that they received the benefits/consideration stipulated in the settlement agreement which is US\$291,973.12 (Two Hundred Ninety-one Thousand, Nine Hundred Seventy-three Dollars Twelve Cents); and finally, the evidence must be presented before the proper forum. The letter written by the respondents alleging fraud and attaching self-serving affidavits is insufficient to overturn the stipulation of withdrawal, considering that the Supreme Court does not take evidence. The affidavits of Ootoso Cole and James K. Garlon who are interested parties and who have not denied that they received the benefits/consideration stipulated in the settlement agreement is self-serving and must be tested before a forum clothed with the authority to take and weigh the evidence. The affidavits of Austin Natee, and Michael Wah must also be subjected to similar scrutiny.
- (VI) That each of the respondents received and retained benefits under the settlement agreement and each executed a receipt-release in favor of the informant. In each receipt-release, the settlement agreement was referenced and incorporated therein.

The informant essentially states in its resistance to the respondents' motion to dismiss that it is by the service of the writ of summons that a person is brought under the jurisdiction of the court; that although the respondents/movants contend that the Court do not have personal jurisdiction over them, yet they have filed returns to the bill of information and have also filed a motion to dismiss the bill of information; that the returns of the Marshal states that the respondents/movants were served the writ. The informant further states that the bill of information does not grow out of the petition for the writ of certiorari that is before the Chambers Justice nor did the writ of summons issued by this Court carry the caption of said case; that the bill of information is predicated on the respondents/movants attempt to resurrect

an appeal, a matter before this Court that has been withdrawn. The informant maintain that this Court has subject matter jurisdiction to prevent anyone from interfering with its order as is being done by the respondents/movants and that a bill of information is the proper form of action prescribed by law as a remedy for such conduct. The informant therefore prays that the respondents' motion to dismiss be denied.

At the call of the case for hearing before this Court, arguments were consolidated on the bill of information and the motion to dismiss the bill of information since the two grew out of the same set of facts. Thus, this Opinion will dispose firstly of the motion to dismiss the bill of information, and based on the outcome thereof, then the bill of information.

Therefore, the focus of our inquiry at this juncture is, whether this Court lacks personal and subject matter jurisdiction over the bill of information.

It is the law in this jurisdiction that a court [including the Supreme Court] is under a legal obligation to determine, in the first instance and before it proceeds to any determination of a case on the merits, whether it is clothed with the requisite personal and subject matter jurisdiction. *Lamin et al. v. Save The Children Fund (UK)*, 40 LLR 96 (2000); *Roberts v. Kaba et al.*, 42 LLR 228 (2004); *Cole v. His Hon. Wah et al.* Supreme Court Opinion, October Term, 2013. As regards personal jurisdiction, it is acquired either by the service of summons on a party or by a party voluntary submission to the court's jurisdiction through the filing of pleadings in a case.

In this case, the contention of the respondents is that this Court lacks personal and subject matter jurisdiction to probe into the merits of the informant's bill of information because the informant referred to the case: *National Timber Wood Construction and Allied Workers' Union of Liberia (NTWCAWU) by and thru its General Secretary, Mr. Marcus S. Blamah for and on behalf of the PPD Personnel of Firestone Liberia v. Firestone-Liberia represented by and thru its General Manager Seamus Gunton* in the averments of the bill of information, a case which is still pending before the Chambers Justice on a petition for the writ of certiorari and over which this Court lacks jurisdiction.

We do not see how the case before the Chambers Justice relates to what is before us. We see that the informant simply references that case to show that the respondents themselves had conceded to have signed a settlement agreement with the informant; therefore, the respondents claim that they were unaware of the settlement agreement is false and misleading. As the informant reiterated in its resistance to the motion to dismiss, the bill of information now before us is solely focused on bringing to the attention of this Court that the appeal involving the informant and the respondents herein was withdrawn by the parties through the execution of a stipulation of voluntary withdrawal and abatement, and that the respondents are attempting to reignite the case after its withdrawal from the Supreme Court's

docket. Our reading of the averments of the bill of information convinces us that it pertains solely to the case involving the informant, Management of Firestone Liberia, Inc., and the respondents, Ootoso Cole *et al.*, and that the informant only made reference to the *National Timber Wood Construction* case which is still pending before the Chambers Justice, to show that the movants/respondents had indeed alluded to the settlement agreement with the respondent/informant. More besides, the records show that the alternative writ was served on the respondents, and in obedience thereto, they filed returns to the bill of information; thereby, satisfying the requirements for the exercise of personal jurisdiction over them.

In light of the above, the respondent's motion to dismiss the informant's bill of information is denied and dismissed. We now proceed to determine the merits of the bill of information.

The questions presented are:

- (i) Whether the stipulation of voluntary discontinuance of the appeal filed by the counsels representing the parties and approved by a Justice of this Court was with the consent of the parties?
- (ii) Whether a bill of information will lie to prevent the respondents from disavowing the stipulation of voluntary discontinuance and abatement of the appeal executed by the parties and approved by this Court?

We begin with the issue of whether the parties consented to the stipulation of voluntary discontinuance filed by their counsels and approved by a Justice of this Court on December 11, 2012.

The respondents strenuously contend that they did not authorize their counsel to withdraw the appeal in the case pending before the Supreme Court; that the stipulation of withdrawal and abatement was dubiously filed by their counsel in collusion with the informant's counsel; that a stipulation of withdrawal and abatement is not effective without the express authorization of a party by means of the execution of an instrument to that effect. The respondents contend further that they rejected the settlement agreement presented to them by the informant and did not sign any instrument for out-of-court settlement of the case; that the signatures of the respondents, especially Ootoso Cole and others, appearing on the receipt-release issued in favor of the informant were forged and that affidavits have been issued to the effect that the signatures were not that of the persons they purport to be.

The informant, on the other hand, contends that the stipulation of withdrawal and abatement of the appeal was filed with the consent and authorization of the respondents; that the authorization to withdraw the case is contained in the settlement agreement executed by the parties and incorporated in the receipt-releases signed by each of the respondents. The informant asserts further that the respondents having received benefits under the settlement

agreement, they cannot disclaim the agreement and the stipulation of withdrawal and abatement that emanated therefrom.

The records show that when the complaint of unfair labor practices was filed by the respondents before the Ministry of Labor in 2009, they were represented by Attorney David Woah of the Kemp and Associates Law Office, and this representation continued up to the time of the filing of and decision on the petition for judicial review before the Thirteenth Judicial Circuit from which the informant appeal to the Supreme Court. The settlement agreement executed on September 14, 2012, following the Judgement of the Thirteenth Judicial Circuit Court on April 11, 2012, made provision for the payment of legal fees to the Kemp and Associates, which fees was paid by the informant via Check no. 10567 on September 25, 2012, and receipt thereof acknowledged. Subsequent thereto, the Stipulation of Withdrawal and Abatement of the appeal announced from the judgment of the Thirteenth Judicial Circuit was filed on December 2, 2012, under the signature of Counsellor Theophilus Gould of the Kemp and Associate, legal counsel for the respondents who presented the Stipulation of Withdrawal and Abatement to His Honor Phillip A.Z. Bank, III, on December 11, 2012, for his approval.

There is no indication from the records that the counsel for the respondents acted contrary to the intention of the respondents because each of the respondents signed a release which incorporated the Settlement Agreement; thus, we can only conclude that the respondents are fully bound by the act of their counsel. It is the law that the lawyer is the agent and representative of the client, a private party, and any act of his, within the scope of his duty, is binding upon the party or client. *Lone Star Insurance Co. v. Cooper et al.*, 40 LLR 549 (2001).

More besides, the records show that the respondents do not deny that they received settlement payment from the informant. In their letter of March 24, 2018, to the Clerk of this Court, the respondents admitted that they received payments from the informant in settlement of the judgment entered by the Thirteenth Judicial Circuit Court, but that the amounts received were initial payment, and the full judgment amount would be paid after judgment by the Supreme Court. Even though the respondents claim that the informant promised to pay the full judgment amount of US\$1,267, 233.70 (United States Dollars One Million Two Hundred Sixty-seven Thousand Two Hundred Thirty-Three 70/100) as entered by the Thirteenth Judicial Circuit Court, the records before us contain absolutely no evidence that such an agreement was reached between the parties and the respondents have brought forth no such evidence, if there be. Besides, would it not have been logical if the informant was prepared to pay the full judgment amount of the lower court, which it took up on appeal, that it would wait for its appeal to be heard and a final decision made by the Court before making payments to the respondents?

A review of Clause 3 of the releases signed by the respondents reveals that the respondents promised that in keeping with Paragraph 2.7 of the referenced Settlement Agreement, that they firmly undertook not to hereafter, whether acting alone or in concert with others, assert any claim, make any demands on, or institute any action – administrative, judicial or quasi-judicial – against FIRESTONE, its Management, agents, and affiliates in connection with the subject matter of the Settlement Agreement. Paragraph 2.7 of the reference Settlement Agreement also states:

“2.7. That the AGGRIEVED PPD PERSONNEL hereby firmly undertake not to hereafter, whether each acting alone or in concert with others, assert any claim, make any demands on, or institute any action—administrative, judicial or quasi-judicial—against FIRESTONE, its management, agents, and affiliates in connection with the subject matter of this Agreement and the case pending on appeal before the Honorable Supreme Court of Liberia, which case, as aforesaid, shall forthwith be withdrawn, terminated and abated pursuant to the terms hereof.”

What is indisputable from the records, is that the respondents, in consideration of various sums of money paid to them individually or to their representatives, executed Releases, releasing the informant from all claims arising out of the subject matter of the case. The records are replete with these releases from the respondents, a copy of which we have reproduced *supra*. In Clause 3 of the Releases, the individual respondents or their representative, acknowledged that a settlement agreement had been executed between they and the informant, and that in keeping therewith, they would refrain from asserting any claim in connection with the subject matter of the release against the informant. This Court wonders why would the respondents having received payments from, and executed releases in favor of the informant, subsequently seek to disavow the withdrawal of the appeal by their previous counsel? It is the law that a party will not be allowed to maintain a position inconsistent with the position under which he has received and accepted benefits. *Kartoe and Williams v. Inter-Con Security System, Inc.* 38 LLR 415 (1999); *Intestate Estate of Edmund D. Cisco v. Mount Sanai Tabernacle*, Supreme Court Opinion, March Term 2023. For “nothing would work greater injustice than for a man to execute a note or deed in favor of another, and then attempt to prove its unlawfulness”. *East African Co. v. Dunbar*, 1 LLR 279 (1895). Thus, not even the affidavits of disavowal can undo what the respondents voluntarily did and received benefits from. The records in the file shows no evidence that the Kemp and Associates Law Office, the respondents initial counsel in this matter, committed fraud as the respondents have alleged.

In view of the above, it is the holding of this Court that the conduct of the respondents in receiving payments from the informant and executing releases in favor of the informant, as shown by the records, supply ample evidence that the said respondents acquiesced to and authorized the withdrawal and abatement of the case from the Supreme Court's docket.

Hence, the action of the respondents' counsel in filing the stipulation of withdrawal and abatement on behalf of the respondents is binding on the said respondents.

We now address the issue, whether a bill of information will lie. Under the precedent of this Court, for a bill of information to lie, the matter forming the basis of the information must have been pending before this Court or decided by it; that there must be an act tending to usurp the province of the Court; that there must exist some irregularities or obstruction in the execution of the Supreme Court's mandate; or that there must have been a refusal to carry out the Court's mandate. *Ahmadu v. Sirleaf, III and Bartu Dorley v. Yessim Ei-Bim et al.*, Supreme Court Opinion, March Term 2013; *J.D. Wesley et al. v. His Honor Yamie Quiqui Gbeissay, et al.*, Supreme Court Opinion, March Term 2023.

The crux of the informant's bill of information is that the appeal which emanated from the case *Otoso Cole at al. v. Firestone Liberia Inc.*, decided by the Thirteenth Judicial Circuit on August 11, 2012, was withdrawn from this Court's docket by the counsel representing the parties, and the withdrawal was approved by an Associate Justice of this Court; that the respondents are attempting to resurrect the case which was withdrawn in keeping with the rules of this Court.

Title III, Part 2 of the Revises Rules of the Supreme Court (1999), under the caption: Continuance and Withdrawal, states in relevant part:

"...when the appellant and appellee, or the petitioner and respondent shall in vacation by themselves, or either counsel, sign and file with the Clerk an agreement in writing directing the cause to be withdrawn and specifying the terms on which it is to be withdrawn as to costs, shall pay to the clerk any fees that may be due him and the ministerial officers, it shall be the duty of the clerk to enter the case withdrawn upon the approval of the Chief Justice or any Justice of the Court, and to give to either party requesting it, a certificate of a withdrawal."

In applying the above quoted rule, this Court has adopted the practice of requiring the counsels for the parties to appear before the Court to confirm the consent of the parties to the withdrawal filed before the Court before ordering the case stricken from the docket in a Judgement Without Opinion (JWO). [see the case: *Liberia Traffic Management v. Govt. of Liberia and Modern Development and Management Corp.*, Supreme Court Opinion, March Term 2023]. Thus, whenever counsels in a case pending before this Court on appeal file a stipulation of withdrawal of the appeal with the Court, and said stipulation is approved either by the Chief Justice or one of the Associate Justices, the Court calls the case for a hearing for the purpose of ascertaining whether the stipulation of withdrawal was filed with the expressed consent of the parties themselves. Upon being satisfied that the stipulation of

withdrawal was filed with the consent of the parties, the Court then enters a Judgment Without Opinion which removes the case from the Court's docket. This practice is not mandated by Title III, Part 2 of the Revised Rules of the Supreme Court (1999) quoted supra. The practice of calling the case and ascertaining whether the stipulation met the consent of the parties is a mere formality adopted for the purpose of assurance.

As we have held above, the evidence overwhelmingly show that the respondents authorized and consented to the withdrawal of the appeal by their counsels and the withdrawal was signed by a Justice of the Supreme Court. Hence, in accordance with the applicable rule of this Court, the appeal for all intent and purposes has in effect been stricken from the docket of this Court; the informant is to pay to the clerk any fees that may be due him and the ministerial officers, and the clerk shall enter the case withdrawn and give to either party requesting it, a certificate of a withdrawal.

Therefore, the bill of information will lie to affirm the withdrawal of the appeal as approved by Justice Phillip A.Z. Banks, III, and we find no reason from the evidence in the Court's file to have the case re-docketed for hearing.

This Court finds it necessary to speak to the conduct of the respondents' additional counsel, Counsellor Sayma Syrenius Cephas, of the CEMAR Law Offices. We note that the Kemp and Associates Law Offices represented the respondents when the case was filed with the Labor Ministry and up to the Supreme Court where upon the agreement of the parties the appeal was abated. Each of the respondents received payment and signed a release in accordance with the settlement agreement executed by the parties. We are taken aback to see that six years thereafter, a counsel of the Supreme Court BAR, purporting to be additional counsel of the respondents, will attempt to resurrect this long settled matter, insinuating that the previous counsel of the respondents acted fraudulently in the settlement of the respondents case with the informant, despite the clear evidence that the respondents acquiesced by the releases signed by them.

Rule 11 of our *Code for the Moral and Ethical Conduct of Lawyers* admonishes that it is unprofessional for a lawyer to advise the institution or continuation of an unmeritorious suit. Rule 31 also emphasizes this Court loathe of lawyers stirring up and pursuing unjustifiable litigations. in our courts. Rule 31, states:

"A lawyer must decline to conduct a civil case, or make a defense when convinced that it is intended merely to harass or to injure the opposite party or to work oppression or wrong.

His appearance in court should be deemed equivalent to an assertion on his honour that in his opinion his client's case is one proper for judicial determination."

This Court, after a perusal of the records of this case, showing that the case between the respondents and informants has been abated with the consent of the respondents, is astounded that Counsellors Sayma Syrenius Cephas, Lavala Kobo Johnson and Willie Barclay would reinstitute a long-settled matter because they believe that the respondents should have settled for more than what they previously settled for. If this Court allows counsellors to resurrect settled matters because they feel that if they had been the previous counsel they would have acted otherwise and their clients would have inured much more benefit, there would be no end to cases before the courts, and agreed settlement of legal matters would be of no consequence. This Court encourages parties to settle matters out of court, since long drawn-out cases in court does not only saddle the court docket with many cases, but prolong settlement of disputes which does not augur well in the Court's advocacy for peace in the society.

The conduct of the counsels representing the respondents, attempting to resurrect this long-settled matter is unethical and in breach of Rules 11 and 31 of the Code for the Moral and Ethical Conduct of Lawyers. Hence, Counsellors Sayma Syrenius Cephas, Lavala Kobo Johnson and Willie Barclay are fined the amount of US\$500.00 (United States Dollars Five Hundred) each. They are further warned that if they insist on exhibiting such conduct in the future, this Court will not hesitate to impose a more stringent measure against them.

WHEREFORE AND IN VIEW OF THE FOREGOING, the bill of information filed by the Management of Firestone, Inc., informant, is hereby granted. The Clerk of this Court is ordered to have the appeal filed by the informant from the ruling of the Thirteenth Judicial Circuit Court, rendered on April 11, 2012, stricken from the docket of this Court in keeping with the Stipulation of Withdrawal and Abatement executed by the parties on December 2, 2012, and approved by Justice Phillip A.Z. Banks, III, on December 11, 2012. Counsellors Sayma Syrenius Cephas, Lavala Kobo Johnson and Willie Barclay are ordered to pay Five Hundred United States Dollars (US\$500.00) into government's revenue within Seventy-two hours after delivery of this Opinion. Costs are ruled against the respondents. AND IT IS HEREBY SO ORDERED.

WHEN THIS CASE WAS CALLED FOR HEARING, COUNSELLORS BETTY LAMIN BLAMO AND JAMES DAKU MULBAH OF THE LEX GROUP LIBERIA, LLC APPEARED FOR THE INFORMANT. COUNSELLORS WILLIE D. BARCLAY, SR., SAYMA SYRENIUS CEPHAS AND L. KOBOI JOHNSON APPEARED FOR THE RESPONDENTS.

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